

SENATE BILL 1974

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 50, relative to leave for state employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Parental Right to Participate in Schools Act."

SECTION 2. Tennessee Code Annotated, Title 8, Chapter 50, Part 8, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Employee" means an employee of this state;

(2) "Employer" means this state and any department, agency, institution, board, commission, or other unit thereof;

(3) "Parent or guardian" means:

(A) A biological mother or father of a child;

(B) A person with legal custody of a child;

(C) A person who acts or who has been appointed as a guardian of a child;

(D) An aunt, uncle, or grandparent of a child; or

(E) A person married to or in a domestic partnership with an individual listed in subdivisions (a)(3)(A)-(D); and

(4) "School-related activity" means a parent-teacher conference, school-sponsored performance, rehearsal, sporting event, or another school function where the child is a participant.

(b)

(1) An employee who is a parent or guardian may take up to forty-eight (48) hours of leave within a calendar year to attend school-related activities for the employee's child.

(2) The employee may take unpaid leave or use available paid leave, including vacation, personal, family, compensatory, or leave bank leave, at the discretion of the employee.

(c) An employee shall provide at least ten (10) days' advance written notice of the leave request unless the school-related activity was not reasonably foreseeable.

(d) An employer may deny leave if granting such leave would create a substantial disruption to business operations or make production or service unusually difficult.

(e)

(1) An employer shall post and maintain notice of the leave available under this section in a conspicuous place within the workplace.

(2) An employer who willfully fails to post the notice may be fined up to one hundred dollars (\$100) for each day the notice remains unposted.

(f)

(1) The department of labor and workforce development shall enforce this section.

(2) Employees may file complaints regarding violations of this section with the department.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.